

Court No. - 21

Case :- WRIT - C No. - 4656 of 2023

Petitioner :- Sanjay Rai @ Chintu Rai

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shivendra Nath Singh, Sanjai Kumar Rai

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Sri Chetan Chatterjee, counsel for the respondent-Electricity department seeks three days' time to obtain instructions.

List as fresh on 15.2.2023.

(Syed Qamar Hasan Rizvi J.)

(Manoj Kumar Gupta, J.)

Order Date :- 9.2.2023

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Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Learned counsel for the respondents prays for and is granted two days further time to complete his instructions in the matter.

Put up as fresh on 17.02.2023.

Order Date :- 15.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

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The petitioner has challenged the recovery certificate dated 23.7.2021 issued by respondent no. 4 for recovery of electricity dues from the petitioner in a case of theft of electricity.

Sri Kawendra Dwivedi, Advocate holding brief of Sri Chetan Chatterjee, learned counsel for the respondent electricity department states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 17.2.2023

Arif

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)